

Tentative Rulings for August 18, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

23CECG04521 *Jose Ramirez v. Helena Industries, Inc.* is continued to Tuesday, September 15, 2026, at 3:30 p.m. in Department 502.

25CECG02962 *Ivan Gonzalez v. Inter-Con, Security Systems, Inc.* is continued to Tuesday, September 15, 2026, at 3:30 p.m. in Department 502.

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Tentative Rulings for Department 502

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Tentative Ruling

Re: **Lopez v. Selma Auto Mall, Inc., et al.**
Superior Court Case No. 25CECG01871

Hearing Date: August 18, 2026 (Dept. 502)

Motion: by Plaintiff for an Order Compelling Defendants' Responses to Discovery

Tentative Ruling:

To grant Plaintiff's motions to compel Defendants Visalia Motors, LLC and Selma Auto Mall, Inc. to provide initial verified responses to Special Interrogatories, Set One. (Code Civ. Proc. §§ 2030.290, subd. (b).) Defendants are ordered to serve complete verified responses to the discovery set forth above, without objection, within 20 days of the clerk's service of the minute order.

To impose monetary sanctions in the amount of \$450 in favor of plaintiff and against Defendant Visalia Motors, LLC. Defendant is ordered to pay \$450 in sanctions to Blackstone Law, APC within 30 days of the clerk's service of the minute order.

Explanation:

A party that fails to serve a timely response to a discovery request waives "any objection" to the request. (Code Civ. Proc. §§ 2030.290, subd. (a).) The propounding party may move for an order compelling a party to respond to the discovery request. (Code Civ. Proc. § 2030.290, subd. (b).)

The discovery at issue was served on defendants Visalia Motors, LLC and Selma Auto Mall, Inc. on January 19, 2026. (Bragg Decl., ¶ 2, Ex. 1.) Despite plaintiff's efforts to address the lack of responses informally, defendants have failed to serve any responses. (*Id.* at ¶ 3-6, Ex. 2, 3.)

Therefore, plaintiff is entitled to an order compelling defendants to respond to Special Interrogatories, Set One, propounded by defendants on January 19, 2026. (Code Civ. Proc. §§ 2030.290, subd. (b).)

In addition, since defendants did not respond to the discovery in a timely manner, they have waived all objections. (Code Civ. Proc. §§ 2030.290, subd. (a).)

Sanctions

The court shall award sanctions against a party who unsuccessfully makes or opposes a motion to compel responses to discovery, unless it finds the one subject to the sanction acted with substantial justification. (Code Civ. Proc. § 2030.010, subd. (d), 2030.290, subd. (c).) Defendants have not submitted an opposition demonstrating substantial justification in their failure to provide responses.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 8-17-26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Jerral Brown v. Amanda Garcia**
Superior Court Case No. 25CECG05620

Hearing Date: August 18, 2026 (Dept. 502)

Motion: Defendant Amanda Garcia's Demurrer to the Tenth and Twelfth Causes of Action

Tentative Ruling:

To overrule Amanda Garcia's demurrer with respect to the tenth and twelfth causes of action. Amanda Garcia to file and serve her answer within 20 days of the clerk's service of this order.

Explanation:

Plaintiff, Jerral Brown ("Brown" or "plaintiff") filed the underlying complaint on December 4, 2025, asserting causes of action for (1) breach of oral contract, (2) breach of implied covenant of good faith and fair dealing, (3) promissory estoppel, (4) unjust enrichment, (5) quantum meruit, (6) breach of fiduciary duty, (7) violations of statutory partnership duties, (8) accounting, (9) conversion, (10) ouster, (11) violation of Business and Professions Code § 17200, and (12) partition. These claims are based on an alleged oral Airbnb joint venture agreement where the parties agreed to jointly renovate, furnish, manage, and operate the properties located at 20149 Siena Drive, Friant, California 93626 ("Siena Property"), and 431 E. Cornell Ave., Fresno, California ("Cornell Property").

Defendant, Amanda Garcia ("Garcia" or "defendant"), demurs to the tenth and twelfth causes of action for ouster and partition, respectively, for failure to state facts sufficient to constitute a cause of action.

The function of a demurrer is to test the sufficiency of a pleading by raising questions of law. (*Plumlee v. Poag* (1984) 150 Cal.App.3d 541, 545.) As relates to a complaint, the test is whether plaintiff has succeeded in stating a cause of action; the court does not concern itself with the issue of plaintiff's possible difficulty or inability in proving the allegations of the complaint. (*Highlanders, Inc. v. Olsan* (1978) 77 Cal.App.3d 690, 697.) In assessing the sufficiency of the complaint against demurrer, we treat the demurrer as admitting all material facts properly pleaded, bearing in mind the appellate courts' well established policy of liberality in reviewing a demurrer sustained without leave to amend, liberally construing the allegations with a view to attaining substantial justice among the parties. (*Glaire v. LaLanne-Paris Health Spa, Inc.* (1974) 12 Cal.3d 915, 918.)

Ouster

Garcia demurs to the tenth cause of action on the grounds that an equitable interest in real property does not allow a party to bring a claim for ouster. (Garcia's Moving Papers, pp. 2:18-3:18.)

Civil Code section 843, subdivision (a) provides:

If real property is owned concurrently by two or more persons, a tenant out of possession may establish an ouster from possession by a tenant in possession in the manner provided in this section. This section does not apply to the extent the tenant out of possession is not entitled to possession or an alternative remedy is provided under the terms of an agreement between the cotenants or the instrument creating the cotenancy or another written instrument that indicates the possessory rights or remedies of the cotenants. This section supplements and does not limit any other means by which an ouster may be established.

Ouster is grounded in the law of tenancy in common and is based upon the principle that "[e]ach tenant in common equally is entitled to share in the possession of the entire property and neither may exclude the other from any part of it." (*Zaslow v. Kroenert* (1946) 29 Cal.2d 541, 548.) The relation of tenants in common with equal rights to occupancy of real property is one of co-owners. Neither owes rent to the other, but "where one cotenant wrongfully ousts the other and prevents him from enjoying joint possession ..., the wrongfully ousted cotenant may recover the damages resulting from the ouster, which ordinarily are his share of the value of the use and occupation of the land during the period of the ouster." (*Brunscher v. Reagh* (1958) 164 Cal.App.2d 174, 176-177; see also *De Harlan v. Harlan* (1946) 74 Cal.App.2d 555)

Garcia argues, without citing any authority, that "[t]he types of cotenancy are set forth in Civil Code § 682-685. A cotenant is not someone with an *alleged* equitable interest in real property." (Garcia's Reply Papers, pg. 2:16-17, italics not added.)

Civil Code section 682 defines the four types of jointly owned property: (a) of joint interest; (b) of partnership interests; (c) of interests in common; (d) of community interest of spouses.

Civil Code section 683, subdivision (a) defines a "joint interest" as follows:

A joint interest is one owned by two or more persons in equal shares, by a title created by a single will or transfer, when expressly declared in the will or transfer to be a joint tenancy, or by transfer from a sole owner to himself or herself and others, **or from tenants in common or joint tenants to themselves or some of them**, or to themselves or any of them and others, or from spouses, when holding title as community property or otherwise to themselves or to themselves and others or to one of them and to another or others, when expressly declared in the transfer to be a joint tenancy, or

when granted or devised to executors or trustees as joint tenants. A joint tenancy in personal property may be created by a written transfer, instrument, or agreement.

(Emphasis added.)

Civil Code section 683 does not preclude that a joint tenancy may be created on equitable grounds. Furthermore, “[a] joint tenancy may, of course, be created in an equitable or legal estate or any other kind of estate recognized by the law. (Citations omitted.) (*Riley v. Turpin* (1956) 47 Cal.2d 152, 155.)

Civil Code section 684 defines a partnership interest “owned by several persons, in partnership, for partnership purposes.” Civil Code section 685 defines an interest in common as one “owned by several persons, not in joint ownership or partnership.” Furthermore, Civil Code sections 684 and 685 do not preclude ownership on equitable grounds.

Here, Brown alleges that he possessed a 50 percent equitable ownership interest arising from the parties’ joint venture agreement; specifically, as to the Siena property, under which he contributed substantial capital, labor, renovations, and management services toward the acquisition and operation of the Airbnb business. After accepting those contributions, Defendant allegedly changed the locks, denied Plaintiff access to the properties, excluded him from the business, seized exclusive control of the Airbnb operations, locked him out of the joint business’ bank account, and retained all profits and equity for herself. (Complaint, ¶¶ 125-133.)

Accordingly, Brown has pled sufficient facts, based on equitable ownership, in order to state a cause of action pertaining to ouster. Garcia’s demurrer with respect to the tenth cause of action is overruled.

Partition

Garcia demurs to the twelfth cause of action as Brown does not assert he has legal title to the Siena Property. Brown’s complaint asserts Brown has equitable title to the Siena property. (Garcia’s Moving Papers, pp. 3:26-4:3.)

“In this state partition of real property is a special statutory proceeding available only under circumstances authorized by Code of Civil Procedure section 752 [currently CCP § 872.210.]” (*Powers v. Powers* (1963) 221 Cal.App.2d 746, 748.)

Code of Civil Procedure section 872.210, subdivision (a) provides who may commence a partition action:

- (a) A partition action may be commenced and maintained by any of the following persons:
 - (1) A co-owner of personal property.
 - (2) An owner of an estate of inheritance, an estate for life, or an estate for years in real property where such property or

estate therein is owned by several persons concurrently or in successive estates.

Code of Civil Procedure section 872.230, subdivision (b) only requires that a complaint for partition describe “[a]ll interests the plaintiff has or claims in the property.” “At the trial, the court shall determine whether the plaintiff has the right to partition.” (Code Civ. Proc., § 872.710.) “The interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action.” (Code Civ. Proc., § 872.610.)

In this case, Brown has alleged he is a co-owner of Siena Property. Brown alleges that the parties entered into a 50/50 joint venture under which Brown contributed substantial capital, labor, management, and resources in exchange for a one-half ownership interest in the Siena Property. Brown further alleges equitable ownership through constructive trust, resulting trust, unjust enrichment, and joint venture theories. Brown has alleged sufficient facts stating his interest. (Complaint, ¶¶ 144-151.) Under these circumstances, Brown has pled sufficient facts for the cause of action pertaining to partition. Brown has also stated the basis for his interest with respect to the properties in question.

Garcia's reference to *Akagi v. Ishioka* (1975) 47 Cal.App.3d 426, 433 (“*Akagi*”), for the proposition that a co-tenancy is required in order to commence a partition action, is inapplicable as *Akagi* has been abrogated by amendment of California Code of Civil Procedure section 872.210 to add subdivision (a)(2)). Garcia provides in her reply:

The two minimum requirements to maintain an action for partition are (1) hold and possess, and (2) cotenancy interest. *Akagi*, 47 Cal.App.3d at 429, citing *Jameson v. Hayward*, (1895) 106 Cal. 682, 686-687. Only cotenants can bring a partition action since “it is the cotenancy which gives the right to a partition.

(Garcia's Reply, 4:5-8.)

The relevant portion of *Jameson v. Hayward*, (1895) 106 Cal. 682, 686-687 provides:

Section 752 of the Code of Civil Procedure reads as follows: “When several cotenants hold and are in possession of real property as parceners, joint tenants, or tenants in common, in which one or more of them have an estate of inheritance, or for life or lives, or for years, an action may be brought by one or more of such persons for a partition thereof according to the respective rights of the persons interested therein, and for a sale of such property or a part thereof, if it appear that a partition cannot be made without great prejudice to the owners.”

As discussed above, Code of Civil Procedure section 872.210 does not require a co-tenancy to commence a partition action. (Code of Civil Procedure section 752 was repealed by Stats.1976, c. 73, p. 110, § 4, and Code of Civil Procedure section 872.210

superseded former Sections 752 and 752a, added by Stats.1976, c. 73, p. 110, §6.) All that is required co-ownership.

Finally, Civil Code sections 1091 and 1624 are not pertinent to this discussion as those statutes govern the transfer of legal title, not the recognition of equitable ownership arising through operation of law.

Accordingly, Garcia's demurrer with respect to the twelfth cause of action is overruled.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 8-17-26 .

(Judge's initials)

(Date)

(36)

Tentative Ruling

Re: ***Franco, et al. v. Nicole, M.D., et al.***
Superior Court Case No. 24CECG00961

Hearing Date: August 18, 2026 (Dept. 502)

Motion: Compromise of Claim of Minor

Tentative Ruling:

To deny without prejudice. In the event that oral argument is requested minor is excused from appearing.

Explanation:

Attorney Fees

The court must consider the terms of any fee agreement between the attorney and the representative of the minor or disabled person and must evaluate the agreement based on the facts and circumstances at the time the agreement was made. (Cal. Rules of Court, Prob. Rule 7.955(a).) The court may allow attorney fees under a valid contingency fee agreement so long as the fees are reasonable. (Cal. Rules of Court, Prob. Rule 7.955(a), Advisory Comm. Comment; see *Gonzalez v. Chen* (2011) 197 Cal.App.4th 881, 885-886 [lawyer not automatically entitled to maximum MICRA fees as provided in contingency agreement because court must apply factors stated in Cal. Rules of Court, Prob. Rule 7.955].) A petition seeking fees must be supported by a declaration by the attorney that addresses the factors set forth above that are relevant to the fee request. Cal. Rules of Court, Prob. Rule 7.955(c).) Similarly, reasonable expenses and court costs to be paid out of the settlement proceeds must be approved by the court. (Prob. Code § 3601.)

Counsel requests for \$2,188,181.11, which appears to be 33.15% of the gross recovery from the minor. This amount is in excess of that agreed upon in the attorney/client fee agreement attached to the petition. (See Attachment 17a.) The fee agreement provides that the client agrees to pay ... "33% of the net recovery..." (Attachment 17a, ¶ 4.) It further indicates that the client's net recovery is the balance following payment of outstanding liens. (*Id.*, at ¶ 5.) This amount is also in excess of the fee limitations set forth by the Medical Injury Compensation Reform Act (MICRA). (Bus. & Prof. Code, § 6146.)

Even if the court assumes that counsel calculated its figures based on the total settlement including the parents' settlement amount, \$6,850,000, counsel's requested fees are in excess of 33%, since counsel also seeks \$83,333.33 from the parents' settlement.

Furthermore, the attorney declaration accompanying the petition does not reveal any information that would support a fee of 33.15% of the settlement. At least according to counsel's fee agreement, the increase in the fee was due solely to having filed the

lawsuit as opposed to participating in arbitration. There is no information providing the amount of time counsel spent litigating this case. Nor is there anything to indicate that there was any novelty or difficulty presented in the action or that the settlement is a particularly good result for the minor who suffered significant injuries.

Special Needs Trust

Petitioner and Guardian ad Litem proposes to deposit \$580,114.46 of the net settlement into an annuity, set to make payments to the proposed special needs trust, and for the remaining \$3,700,000.03 to be transferred into the proposed special needs trust pursuant to Probate Code section 3604. The court generally approves of this arrangement (assuming the figures are adjusted following recalculation of attorney fees as mentioned above), since this will ensure that receipt of this money will not disqualify the minor from receiving the public benefits he may need due to his disabilities. However, petitioner must show that she has first filed, with the Probate Department, a Petition under Probate Code sections 3600-3613 to establish and fund the special needs trust. The Probate Court is better suited to confirm that the Trust complies with California Rules of Court, Rule 7.903, to ensure that the notice required by Probate Code section 3611, subdivision (c) is given, and to provide for the ongoing court supervision of the trust.

Once the probate petition has been granted, petitioner can then petition this court for approval of the compromise of the disabled adult's claim.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 8-17-26 .
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***In Matter of Arvizu***
Superior Court Case No. 26CU02041

Hearing Date: August 18, 2026 (Dept. 502)

Motion: Expedited Petition to Compromise Claim of Minor

Tentative Ruling:

To grant and sign the proposed order. No appearance necessary.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-17-26.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Legarda v. Madera Roofing, Inc.***
Superior Court Case No. 24CECG02472

Hearing Date: August 18, 2026 (Dept. 502)

Motion: Motion to Enforce Subpoena

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 8-17-26
(Judge's initials) (Date)

(29)

Tentative Ruling

Re: ***In re: Dana Xiong***
Superior Court Case No. 26CECG01162

Hearing Date: August 18, 2026 (Dept. 502)

Motion: Petition to Compromise Claim of a Minor

Tentative Ruling:

To grant the petition and sign the proposed orders. No appearances necessary.

The status conference previously set for Thursday, September 24, 2026, at 3:30 p.m., in Department 502, for confirmation of deposit of claimant's funds into the blocked account will remain on calendar. If petitioner files the Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account (MC-356) at least three court days before the hearing, the status conference will come off calendar.

Pursuant to California Rules of Court, rule 3.1312, and Code of Civil Procedure section 1019.5(a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued by:  **on** 8-17-26 .
(Judge's initials) (Date)